

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

-----X
HASAN JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER KRISTEN FAIRCLOUGH (SHIELD #3108), POLICE OFFICER GLEN BARKER (SHIELD #10067), POLICE OFFICER DUSTIN DIMPFLMAIER (SHIELD 13054), POLICE OFFICERS JOHN DOE 1-2 (names and numbers of who are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.
-----X

SUMMONS

Index #

Basis of Venue:
Place of Incident

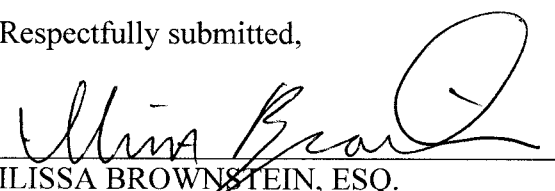
Plaintiff Designates
New York County
as Place of Trial

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 30, 2015

Respectfully submitted,


ILISSA BROWNSTEIN, ESQ.

Attorney for Plaintiff
65 Broadway (Suites 813 & 814)
New York, New York 10006
(212) 691-3333

CITY OF NEW YORK: CORPORATION COUNSEL
100 Church Street New York, NY 10007

POLICE OFFICER KRISTEN FAIRCLOUGH (SHIELD #3108) Patrol Borough Manhattan North
POLICE OFFICER GLEN BARKER (SHIELD 10067) Patrol Borough Manhattan North
POLICE OFFICER DUSTIN DIMPFLMAIER (SHIELD 13054) Patrol Borough Manhattan North

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

-----X
HASAN JOHNSON,

VERIFIED COMPLAINT

Plaintiff,

Index #

-against-

THE CITY OF NEW YORK, POLICE OFFICER KRISTEN FAIRCLOUGH (SHIELD #3108), POLICE OFFICER GLEN BARKER (SHIELD #10067), POLICE OFFICER DUSTIN DIMPFLMAIER (SHIELD #13054), POLICE OFFICERS JOHN DOES #1-2 (names and numbers of who is unknown at present), and other unidentified members of the New York City Police Department,

Defendants.
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Plaintiff **Hasan Johnson**, by his attorney, ILISSA BROWNSTEIN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and malicious prosecution of plaintiff. Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Hasan Johnson is a citizen of the United States and resident of Queens, New York.
3. Police Officer Kristen Fairclough (Shield #3108) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. Police Officer Kristen Fairclough (Shield #3108) is being sued in her individual capacity and official capacity.
5. Police Officer Glen Barker (Shield #10067) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. Police Officer Glen Barker (Shield #10067) is being sued in his individual capacity and official capacity.
7. Police Officer Dustin Dimpflmaier (Shield #13054) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officer Dustin Dimpflmaier (Shield #13054) is being sued in his individual capacity and official capacity.
9. New York Police Officers John Does #1-2 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
10. Police Officers John Does #1-2 are being sued in his individual capacity and official capacity.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
13. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.

STATEMENT OF FACTS

15. Hasan Johnson is 27 years old.
16. Mr. Johnson has never been convicted of a crime.
17. On June 29, 2014 at 7:30pm at 112 E. 128th Street New York, New York, Mr. Johnson was in the lobby of his girlfriend and mother's apartment building when members of the NYPD approached him, tackled him to the ground, assaulted him, tasered him, choked him and assaulted him with a baton.
18. As a result of the June 29, 2014 incident, Mr. Johnson sustained a large scar to his left shoulder, pain, bruises, scars, and back pain.
19. The police officers claimed that earlier that day, Mr. Johnson was riding a skateboard on the sidewalk in a manner that was disruptive to the public. Mr. Johnson was arrested for assaulting the officers.
20. Mr. Johnson was taken to the hospital where he was treated and taser points were removed.
21. Mr. Johnson was held in jail for approximately 24 hours before he was bailed out.

FIRST CAUSE OF ACTION

ASSAULT

22. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 21 with the same force and effect as if more fully set forth at length herein.
23. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff. Defendant was assaulted by numerous officers.
24. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
25. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

BATTERY

26. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 25 with the same force and effect as if more fully set forth at length herein.
27. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery. Defendant was assaulted by numerous officers.
28. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
29. The City, as the employer of Defendants is responsible for his wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

30. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 29 with the same force and effect as if more fully set forth at length herein.
31. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

32. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.
33. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
34. Defendants failed to intervene to prevent the unlawful conduct described herein.
35. As a result of the foregoing, plaintiff was subjected to an assault, failure to provide medical treatment at a hospital when head injuries were involved, and failure to give defendant access to his inhaler or allergy medications.
36. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
37. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

NEGLIGENCE

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.
39. Defendants owed a duty of care to plaintiff.
40. Defendants breached that duty of care by subjecting him to an assault, failure to provide medical treatment at a hospital when head injuries were involved, and failure to give defendant access to his inhaler or allergy medications.
41. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
42. All of the foregoing occurred without any fault by plaintiff.
43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.
45. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
46. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
47. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SEVENTH CAUSE OF ACTION

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

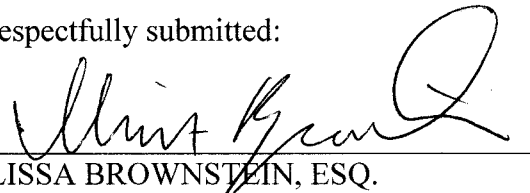
48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.
49. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States. The defendants failure to provide medical treatment at a hospital when head injuries were involved and the Plaintiff is an asthmatic and requires access to his inhaler as well as allergy medications is a common practice of the NYPD.
50. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions.
51. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.
52. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.
53. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested and prosecuted.
54. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE HASAN JOHNSON, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
July 30, 2015

Respectfully submitted:

By:



ILISSA BROWNSTEIN, ESQ.

Attorney for Plaintiff

65 Broadway

Suites 813 & 814

New York, New York 10006

(212) 691-3333

TO: CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, New York 10007

POLICE OFFICER KRISTEN FAIRCLOUGH (SHIELD #3108)
Patrol Borough Manhattan North

POLICE OFFICER GLEN BARKER (SHIELD #10067)
Patrol Borough Manhattan North

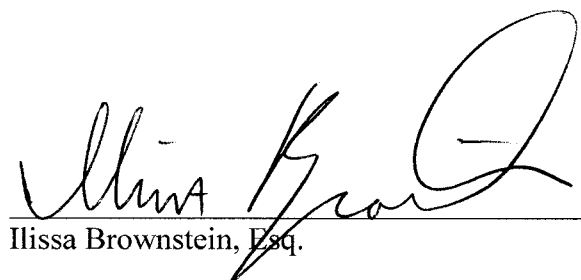
POLICE OFFICER DUSTIN DIMPFLMAIER (SHIELD #13054)
Patrol Borough Manhattan North

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the **LAW OFFICE OF ILISSA BROWNSTEIN, ESQ, P.C.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 30, 2015



Ilissa Brownstein, Esq.